

Prophyion Consultant Agreement

Agreement Date	The date Prophyion approves the Consultant's application in the Prophyion platform
Consultant Name	
Consultant Email Account	
Consultant Contact Number	
Consultant Address	
Professional Title	Independent Prophyion Consultant
Consultant Share	30% of the agreed Client engagement price, earned upon delivery of the completed AAR
Payment Method	Automated via Stripe through the Prophyion platform

1. Parties

- 1.1. Prophyion, UEN 202546509H ("Prophyion"); and
- 1.2. The individual named in the table above as the Consultant, of the Consultant Address stated in that table (the "Consultant").

Prophyion and the Consultant are each a "Party" and together the "Parties".

2. Appointment, Independence and Professional Freedom

- 2.1. Prophyion appoints the Consultant on a non-exclusive freelance basis to provide risk consulting, crisis-response facilitation, training and business-development services using the Prophyion TTX Crisis Simulator where authorised under this Agreement.
- 2.2. The Consultant is an independent contractor. Nothing in this Agreement creates an employment relationship, partnership, joint venture, fiduciary relationship or general agency between the Parties.
- 2.3. The Consultant may work for, be employed by, advise or provide services to any other organisation, including organisations operating in risk management and organisations that may compete with or complement Prophyion, provided that the Consultant complies with this Agreement.
- 2.4. The Consultant may accept independent work from a Client, including a Client first encountered through Prophyion, provided that such work does not breach this Agreement and any use of the Prophyion Technology remains subject to this Agreement and the applicable Prophyion service fee.
- 2.5. The Consultant is under no obligation to accept any particular engagement, and Prophyion is under no obligation to offer any minimum number or value of engagements.
- 2.6. Subject to the pricing rules in Clause 3, the Consultant may discuss and negotiate the engagement price with a prospective Client. Unless Prophyion gives prior written authority, the Consultant may not bind Prophyion to a contract, agree non-standard terms on Prophyion's behalf, incur liabilities in Prophyion's name, or make warranties on behalf of Prophyion.

3. Consultant Compensation and Commercial Terms

- 3.1. For each Client engagement, the Consultant identified in the Prophyion platform as responsible for the engagement and delivery of the completed AAR is entitled to a Consultant Share equal to 30% of the agreed Client engagement price recorded in the platform.
- 3.2. The Consultant Share is earned only when the completed AAR is sent to the Client through the Prophyion platform or another delivery method authorised by Prophyion. The platform record shall determine the Consultant entitled to the Consultant Share for the engagement. Only one Consultant Share is payable for each engagement.
- 3.3. The standard minimum Client engagement price is S\$10,000. The Consultant may negotiate an engagement price at or above that amount, subject to any pricing rules displayed in the Prophyion platform. A lower engagement price may only be used where Prophyion expressly approves it in writing or through the platform.
- 3.4. The Consultant Share is calculated before any deduction of taxes, payment-processing charges, or Prophyion's operating, administrative, technology or platform costs. Prophyion shall bear all auxiliary costs of operating the platform.
- 3.5. Upon delivery of the completed AAR to the Client, the Prophyion platform shall initiate payment of the Consultant Share through Stripe to the payment account registered by the Consultant.
- 3.6. If an engagement is cancelled, discontinued or otherwise ends before the completed AAR is delivered to the Client, no Consultant Share is payable unless Prophyion expressly agrees otherwise in writing or through the platform.
- 3.7. If Prophyion refunds, reverses or is required to return all or part of the Client engagement payment after the Consultant Share has been paid, Prophyion may recover or offset the corresponding proportion of the Consultant Share.
- 3.8. The Consultant is engaged on a freelance, commission-only basis. No base salary, retainer, minimum payment, employee benefit or guaranteed volume of engagements is payable under this Agreement.
- 3.9. The Consultant shall bear the Consultant's own travel, accommodation, subsistence and other engagement expenses unless Prophyion expressly agrees otherwise in writing or through the platform.
- 3.10. This Agreement does not create any separate referral, origination or sales commission. Any such arrangement must be separately recorded in writing or through the Prophyion platform.
- 3.11. The Consultant is responsible for maintaining accurate Stripe payment and bank-account details and completing any verification reasonably required by Stripe or applicable payment rules.
- 3.12. The Consultant is responsible for the Consultant's own taxes, filings and statutory obligations arising from payments received under this Agreement, except to the extent applicable law requires Prophyion to make a deduction or report a payment.

4. Personal Access and Permitted Use of the War Room

- 4.1. Access is granted personally to the named Consultant. The account is associated with the Consultant as an individual, even where the Consultant registers using an email address issued by an employer or another organisation.
- 4.2. The Consultant's employer, partnership, consultancy, colleagues and clients obtain no licence or access rights merely because the Consultant uses an employer-issued email address or uses the Prophyion Technology in the course of that employment or engagement.
- 4.3. The Consultant may continue to use the Prophyion Technology while employed or engaged by another organisation, including another consultancy, provided that the relevant use is for a permitted purpose and the applicable Client pays the required Prophyion service fee.
- 4.4. The Consultant may use the War Room for:
 - risk consulting and crisis-simulation engagements;
 - business development, including independent demonstrations to prospective Clients;
 - training engagements authorised by Prophyion; and

- other purposes expressly approved in writing by Prophyion.
- 4.5. For business-development demonstrations, the Consultant may use a Template Scenario. A Client-derived scenario may only be used with the originating Client's prior permission.
- 4.6. If the Consultant changes employer, email address or professional affiliation, the Consultant shall notify Prophyion so that account records and access rights may be updated as appropriate.

5. Professional Development, Professional Titles and General Know-How

- 5.1. The Consultant may retain and use general skills, experience and professional lessons developed through Prophyion engagements, including lessons concerning facilitation, problem-solving and crisis response.
- 5.2. The Consultant may apply those general skills and lessons in other employment or professional engagements, including work elsewhere in the risk-management sector, provided that doing so does not disclose Client Scenario Information or non-public Prophyion Technology.
- 5.3. Prophyion encourages the Consultant to use the skills, experience and professional development gained through Prophyion engagements to strengthen the Consultant's professional capabilities and pursue better career, employment and professional opportunities, including within the broader risk-management sector.
- 5.4. While this Agreement is in force, the Consultant may describe the Consultant's role as "Independent Prophyion Consultant", including on a curriculum vitae, professional profile or similar material, provided that the Consultant does not imply an employment relationship or authority beyond that granted under this Agreement.
- 5.5. After termination of this Agreement, the Consultant may truthfully describe the Consultant's prior role as "Former Prophyion Consultant", provided that the Consultant does not imply a continuing appointment, endorsement or authority to act for Prophyion.

6. Prophyion Responsibilities

- 6.1. Prophyion shall provide the Consultant with reasonable access to the Prophyion Technology for authorised engagements, subject to platform availability, security requirements and this Agreement.
- 6.2. Prophyion shall provide authorised initial familiarisation or training and reasonable technical support, templates and operational guidance that Prophyion considers reasonably necessary for authorised engagements.
- 6.3. Prophyion shall maintain engagement and payment records in the Prophyion platform and shall pay Consultant Shares earned in accordance with Section 3.
- 6.4. Where reasonably practicable, Prophyion shall provide reasonable notice of material operational or platform changes that materially affect an accepted engagement.

7. Definitions

- 7.1. "Prophyion Technology" means the Prophyion Crisis Simulator, including the War Room scenario-creation module, and the underlying software, methodology and reusable templates forming part of that system, together with non-public updates and improvements to it.
- 7.2. "War Room" means the scenario-creation module of the Prophyion Crisis Simulator to which the Consultant may be granted access.
- 7.3. "Client" means a person or organisation for whom the Consultant uses or proposes to use the Prophyion Technology in connection with a consulting, training or demonstration engagement.
- 7.4. "AAR" means the after-action review prepared as the final deliverable for the relevant Client engagement.
- 7.5. "Client Scenario Information" means all information relating to a Client's actual or proposed simulation, including:
- scenario content and injects;
 - AARs, findings and observations;

- participant decisions, responses and performance;
 - vulnerabilities, weaknesses, preparedness concerns and crisis priorities;
 - contingency plans, internal procedures, security arrangements and response plans;
 - information disclosed during consultations, briefings, workshops or exercises; and
 - observations made by the Consultant from which the Client's vulnerabilities, preparations or actions could reasonably be inferred.
- 7.6. "Template Scenario" means a non-client scenario made available or approved by Prophyion for demonstration, training or business-development use.
- 7.7. "Background IP" means intellectual property, methodologies, frameworks, materials, presentations, templates or other works created, acquired or owned by the Consultant independently of the Prophyion platform and not specifically created for a Prophyion Client engagement.
- 7.8. "Business Day" means a day other than a Saturday, Sunday or public holiday in Singapore.
- 7.9. "Serious Ethical Breach" has the meaning given in Section 13.3.

8. Client Ownership, Consultant Materials, Scenario Reuse and Model Improvement

- 8.1. As between Prophyion and the relevant Client, and subject to the applicable Client agreement, the Client owns its bespoke scenario and AAR. The Consultant shall not claim ownership of a Client's scenario or AAR.
- 8.2. Prophyion retains ownership of the Prophyion Technology and its underlying methodology, software and reusable templates, including where those elements are used to create or deliver a Client simulation.
- 8.3. To the extent the Consultant may acquire any copyright or other intellectual-property right in a Client scenario, AAR or other material created specifically in performing a Prophyion engagement, the Consultant assigns that right to Prophyion to the extent necessary for Prophyion to give effect to the Client's ownership and Prophyion's retained rights under the applicable Client agreement.
- 8.4. The Consultant's Background IP remains the Consultant's property. Prophyion acquires no ownership of material created independently by the Consultant outside the Prophyion platform merely because the Consultant is appointed under this Agreement.
- 8.5. Where the Consultant publishes, presents or distributes material outside a Client engagement that materially relies upon output generated using the Prophyion Technology, the Consultant shall acknowledge Prophyion where reasonably appropriate, provided that doing so does not breach Client confidentiality, Client instructions or applicable law.
- 8.6. A Client scenario may be reused by the Consultant for a subsequent engagement with the same Client, subject to the Client's instructions and any applicable engagement terms.
- 8.7. A Client scenario may be used, reproduced, adapted or demonstrated for another Client only with the originating Client's prior permission, including where the scenario has been anonymised.
- 8.8. Where permitted by the applicable Client terms and law, Prophyion may securely retain Client scenarios and simulation data in its systems, anonymise that material, and use anonymised material internally for analytics and the refinement of the Prophyion Technology.
- 8.9. Internal anonymisation and model-refinement rights granted to Prophyion do not give the Consultant an independent right to extract, reuse, distribute or demonstrate an anonymised Client scenario for another Client.

9. Protection of Prophyion Technology

- 9.1. All rights in the Prophyion Technology remain with Prophyion or its licensors. Except for the limited right of use expressly granted by this Agreement, the Consultant obtains no ownership, title or other proprietary interest in the Prophyion Technology.
- 9.2. The Consultant shall not sell, licence, sublicense, assign, transfer, distribute, disclose or otherwise provide the Prophyion Technology, or any non-public part of it, to any unauthorised third party, including a competitor of Prophyion.

- 9.3. The Consultant shall not use access to the Prophyion Technology to reproduce, create, commission or assist in creating a competing copy of the Prophyion Crisis Simulator or to provide another person with non-public information for that purpose.
- 9.4. This Clause does not prevent the Consultant from working for another organisation or using general professional skills and knowledge. Its purpose is to protect the Prophyion Technology itself, not to restrain the Consultant's profession or employment.
- 9.5. The obligations in this Clause survive termination of this Agreement.

10. Client Confidentiality and Reasonable Data Security

- 10.1. The Consultant shall keep Client Scenario Information confidential and shall not disclose it to another Client, competitor of the Client, or any other unauthorised person.
- 10.2. The Consultant shall not disclose a Client's vulnerabilities, preparedness priorities, contingency arrangements, security concerns or exercise performance to another Client or unauthorised third party, whether or not the Consultant identifies the Client by name.
- 10.3. The Consultant may retain AARs and other Client materials on a personal device where reasonably necessary to perform the Consultant's work. The Consultant shall take reasonable precautions appropriate to the sensitivity of the information to prevent unauthorised access, disclosure, loss or misuse.
- 10.4. Reasonable precautions include, where appropriate to the circumstances:
- using a password, PIN, biometric lock or comparable access control on devices used to hold Client materials;
 - not intentionally placing Client materials in publicly accessible or openly shared locations;
 - taking reasonable care when transmitting Client materials;
 - not intentionally providing Client materials to persons who do not need them for the relevant engagement; and
 - informing Prophyion as soon as reasonably practicable after becoming aware of a material loss, compromise or unauthorised disclosure of Client Scenario Information.
- 10.5. The Consultant may retain an AAR and related Client materials while reasonably necessary for current or reasonably anticipated future engagements with the same Client.
- 10.6. If the Client or Prophyion, acting on the Client's instructions, requires Client materials to be returned or deleted, the Consultant shall comply as soon as reasonably practicable, except to the extent retention is required by law.
- 10.7. The Consultant shall comply with any reasonable Client-specific confidentiality or handling instruction communicated by Prophyion for a particular engagement.
- 10.8. The obligations in this Clause survive termination and continue for so long as the relevant information remains confidential, unless the Client authorises disclosure or the information lawfully enters the public domain other than through a breach of this Agreement.

11. Account Security and Restricted Uses

- 11.1. The Consultant's Prophyion account is personal and non-transferable.
- 11.2. The Consultant shall not:
- share account credentials with any other person;
 - permit a colleague, employer, Client or third party to operate the War Room through the Consultant's account;
 - transfer, sell or lend account access;
 - knowingly allow another person to impersonate the Consultant when accessing the Prophyion Technology; or
 - use the War Room for independent product testing or self-directed familiarisation unless Prophyion expressly authorises that activity in writing.
- 11.3. Consultant familiarisation with the War Room shall be conducted only through sessions authorised and conducted by Prophyion.

- 11.4. The Consultant shall notify Prophyion as soon as reasonably practicable if the Consultant suspects that account credentials or access have been compromised.
- 11.5. Prophyion may require a password reset, additional verification or temporary suspension where reasonably necessary to protect account integrity, Client information, the Prophyion Technology or evidence relating to a suspected breach.

12. Professional Standards, Withdrawal and Performance Remediation

- 12.1. The Consultant shall perform each accepted engagement with reasonable skill, care, preparation, diligence and professionalism.
- 12.2. After accepting an engagement, the Consultant may withdraw where reasonable circumstances require it, but shall give Prophyion as much notice as reasonably practicable and reasonably cooperate with any transition or replacement arrangements requested by Prophyion.
- 12.3. Where Prophyion identifies a material performance deficiency that does not amount to a Serious Ethical Breach, Prophyion shall notify the Consultant of the concern and provide the Consultant with a reasonable opportunity to discuss the matter in an interview or review.
- 12.4. Where appropriate, Prophyion shall require or provide further familiarisation, coaching or retraining directed at the identified performance deficiency.
- 12.5. Prophyion shall not terminate the Consultant solely for an ordinary performance deficiency unless the process in Clauses 12.3 and 12.4 has occurred and the Consultant subsequently demonstrates another material performance deficiency after the retraining or remediation opportunity.
- 12.6. This Clause does not limit Prophyion's right to suspend access or terminate immediately for a Serious Ethical Breach, unlawful activity, deliberate misuse of Client Scenario Information or the Prophyion Technology, or another ground for immediate termination under this Agreement.

13. Ethical Use and Prohibited Conduct

- 13.1. The Consultant shall use the Prophyion Technology professionally, lawfully and only for the permitted purposes under this Agreement.
- 13.2. The Consultant shall not:
 - knowingly falsify, fabricate or materially misstate an AAR finding, exercise observation or simulation result;
 - use Client Scenario Information or the Prophyion Technology to expose or exploit a Client's vulnerabilities for an unauthorised purpose;
 - use the Prophyion Technology to harm, intimidate or deliberately deceive another person or entity;
 - use the Prophyion Technology in support of unlawful activity;
 - knowingly facilitate another person's unauthorised use of the Prophyion Technology;
 - knowingly disclose or reuse Client Scenario Information contrary to this Agreement; or
 - knowingly transfer or exploit the Prophyion Technology contrary to this Agreement.
- 13.3. A "Serious Ethical Breach" is an intentional or reckless breach of Section 13.2 that causes, or creates a material risk of, significant harm to a Client, Prophyion or another person, or involves deliberate falsification, unlawful activity, deliberate disclosure of Client vulnerabilities, malicious use, or intentional misuse or transfer of account access or Prophyion Technology.

14. Investigation, Corrective Action and Appeal

- 14.1. Where Prophyion reasonably suspects a Serious Ethical Breach, Prophyion may investigate the matter and may suspend the Consultant's access while the investigation is ongoing.
- 14.2. Before making an initial determination under this Clause, Prophyion shall provide the Consultant with a summary of the material allegation and a reasonable opportunity to respond, unless immediate action is required to protect a Client, preserve evidence or comply with law.

- 14.3. The initial determination shall be made by Prophyion's authorised representative, being Kenneth Yeo unless Prophyion notifies the Consultant of another authorised representative. The determination shall be made in good faith after considering the available information and the Consultant's response.
- 14.4. If a Serious Ethical Breach is established, Prophyion may require corrective action proportionate to the seriousness, effects and audience of the breach.
- 14.5. Where the harm caused by the Serious Ethical Breach is private or confined to an affected Client or person, Prophyion may require a private apology and factually accurate corrective communication to the affected Client or person.
- 14.6. Where the Serious Ethical Breach, or its effects, are public or reasonably likely to cause public-facing reputational harm, Prophyion may require a proportionate public corrective statement, including a public video apology where appropriate.
- 14.7. Any apology or corrective statement required under this Clause shall:
- accurately acknowledge the established misconduct and be proportionate to the breach;
 - not disclose Client Scenario Information, personal data or other confidential information;
 - not require the Consultant to make a statement that Prophyion knows to be false or misleading; and
 - where a public video apology is required, be completed within seven Business Days after written notice and remain publicly available for at least 30 days where the relevant platform permits.
- 14.8. The Consultant may appeal a determination of Serious Ethical Breach within seven Business Days after receiving written notice of the determination by identifying the grounds of appeal and providing any evidence relied upon. The Consultant bears the burden of demonstrating that the original determination was materially incorrect or that material evidence was not adequately considered.
- 14.9. An appeal shall be considered by a reviewer appointed by Prophyion who was not the original decision-maker. Unless urgent communication is reasonably necessary to protect a Client, another person or Prophyion, any public corrective action shall be suspended until the appeal is determined.
- 14.10. If a required public video apology is held to be unlawful or unenforceable in the circumstances, the Consultant shall instead provide a factually accurate written corrective statement and reasonably cooperate with proportionate communications necessary to correct the effects of the Serious Ethical Breach.
- 14.11. The corrective measures and appeal process in this Clause are additional to Prophyion's rights to suspend or terminate access, terminate this Agreement, seek damages or pursue other lawful remedies.

15. Liability

- 15.1. Subject to Section 15.3 and to the fullest extent permitted by law, each Party's aggregate liability to the other arising out of or in connection with this Agreement shall not exceed the total Consultant Shares paid or payable to the Consultant during the 12 months immediately preceding the event giving rise to the claim.
- 15.2. The liability cap in Section 15.1 does not limit Prophyion's obligation to pay a Consultant Share that has already been earned in accordance with Section 3, subject to any valid refund, reversal or clawback under Section 3.7.
- 15.3. The liability cap in Section 15.1 does not apply to liability arising from fraud, wilful misconduct, deliberate misuse or transfer of the Prophyion Technology, deliberate unauthorised disclosure of Client Scenario Information, unlawful activity, or any liability that cannot lawfully be excluded or limited.

16. Term, Suspension and Termination

- 16.1. This Agreement starts on the Agreement Date and continues until terminated in accordance with this Clause.
- 16.2. Either Party may terminate this Agreement without cause by giving 30 days' written notice to the other Party.
- 16.3. Prophyion may terminate this Agreement immediately by written notice where the Consultant:
 - commits a Serious Ethical Breach;
 - materially breaches the provisions relating to Client ownership or scenario reuse, protection of Prophyion Technology, Client confidentiality, account security or ethical use;
 - uses the Prophyion Technology in support of unlawful activity;
 - deliberately transfers or provides the Prophyion Technology to an unauthorised third party; or
 - commits another material breach which is capable of remedy and fails to remedy it within seven days after written notice.
- 16.4. Termination solely for ordinary performance deficiencies shall be subject to the performance-remediation process in Section 12.
- 16.5. Suspension of access does not itself terminate this Agreement or waive any right of Prophyion.

17. Consequences of Termination

- 17.1. On termination, the Consultant's right to access the War Room and other restricted parts of the Prophyion Technology ends, subject to any transitional access expressly approved in writing by Prophyion.
- 17.2. Termination does not affect a Consultant Share already earned by delivery of a completed AAR before the effective date of termination, subject to any refund, reversal or clawback under Section 3.7.
- 17.3. The Consultant shall, on reasonable request, return or delete Prophyion confidential materials and Client materials that the Consultant no longer needs to retain for an authorised engagement or legal obligation, and shall comply with any Client deletion instruction under Section 10.6.
- 17.4. After termination, the Consultant may use the title "Former Prophyion Consultant" in accordance with Section 5.5.
- 17.5. Termination does not prevent the Consultant from retaining general professional skills, experience, Background IP and independently created material as permitted under this Agreement.
- 17.6. Any provision which by its nature is intended to survive termination, including obligations relating to Client ownership and scenario reuse, protection of Prophyion Technology, Client confidentiality, liability, corrective action and consequences of termination, remains effective after termination to the extent stated or necessary to give it effect.

18. Remedies

- 18.1. The Consultant acknowledges that unauthorised transfer or disclosure of the Prophyion Technology or Client Scenario Information may cause harm that cannot be adequately remedied by damages alone.
- 18.2. Subject to applicable law, Prophyion may seek injunctive or other equitable relief to prevent or stop unauthorised access, transfer, disclosure or use, in addition to any other remedy available to it.
- 18.3. Nothing in this Agreement limits any right or remedy of a Client under a separate agreement or applicable law.

19. General

- 19.1. Entire agreement. This Agreement constitutes the entire agreement between Prophyion and the Consultant concerning the Consultant's access to the Prophyion Technology and the matters

addressed in it, subject to any separate engagement-specific terms agreed in writing or through the Prophyion platform.

- 19.2. Variation. A variation of this Agreement must be agreed in writing, except that engagement-specific payment amounts, pricing approvals and operational details may be recorded or confirmed through the Prophyion platform.
- 19.3. Assignment. The Consultant may not assign or transfer this Agreement or account access without Prophyion's prior written consent.
- 19.4. Severability. If any provision is invalid or unenforceable, it shall be modified to the minimum extent necessary to make it valid and enforceable where permitted by law, and the remaining provisions remain in effect.
- 19.5. Waiver. A failure or delay in exercising a right does not waive that right.
- 19.6. Notices. Notices under this Agreement may be sent electronically to the email address associated with the Consultant's Prophyion account and to the contact address designated by Prophyion from time to time.
- 19.7. Electronic signatures. This Agreement may be signed electronically and in counterparts, each of which is treated as an original and together constitute one agreement.

20. Governing Law and Jurisdiction

- 20.1. This Agreement is governed by the laws of Singapore.
- 20.2. The Parties submit to the exclusive jurisdiction of the courts of Singapore.

21. Authorisation

Consultant Signature	
Consultant Name	
Date	